



Notification Waiver Determination

Platinum Equity Group – LMPG

Acquisition	Fos Acquisition Corporation, a vehicle ultimately controlled by Platinum Equity Advisors, LLC (Platinum Equity), applied for a notification waiver in respect of its proposed acquisition of 100% of the issued share capital in LMPG Inc. (LMPG), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	10 June 2026

Parties to the Acquisition	The acquirer, Platinum Equity is a US-headquartered global private equity and investment strategies firm. Platinum Equity specialises in the merger, acquisition and operation of companies providing services and solutions to customers in a broad range of sectors including, for example, business services, information technology, telecommunications, logistics, metal services, manufacturing and distribution. The target, LMPG designs and manufactures specification-grade LED lighting products for the hospitality, infrastructure, workplace, retail and entertainment sectors, primarily in commercial, institutional and urban settings. Its product range includes indoor, outdoor, and site and area LED lighting solutions, available across a range of optics, colours, accessories and finishes, and manufactured to client specifications. LMPG supplies these products under the Lumenpulse, Fluxwerx, Sternberg, Exenia, Pa-Co, Lumca, ALW and Vode brands. Headquartered in Quebec, Canada, LMPG designs and manufactures its lighting solutions across several sites in North America and one site in Italy.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal or vertical overlap between Platinum Equity's connected entities and LMPG in the supply of LED lighting solutions.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act